



File No: EXP202405119

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On April 22, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against WATIUM S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202405119

### AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection, and based on the following

### FACTS

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against WATIUM S.L. with NIF B86459260 (hereinafter, the respondent), indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection were noted, leading to the initiation of actions under file number EXP202309276.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint was forwarded to the responsible party or to the Data Protection Officer that may have been designated, requesting that they send to this Agency the information and documentation indicated. The transfer, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic means, was received by the respondent on July 27, 2023, as evidenced by the acknowledgment of receipt in the file.

On August 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the supervisory authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, a request for information was sent to the respondent on two occasions, regarding the complaint indicated in the first section, asking them to submit to this Agency the information and documentation specified within ten working days.

THIRD: The aforementioned request for information, which was notified on both occasions in accordance with the rules established in the LPACAP through electronic means, was received by the respondent on November 23, 2023, and February 9, 2024, as evidenced by the acknowledgments of receipt in the file.

FOURTH: On February 21, 2024, and with entry registration number REGAGE24e00013639767, the respondent submitted a written request for an extension of the deadline granted to provide the required information and documentation until February 29, 2024.

FIFTH: Regarding the requested information, the respondent has not submitted any response to this Spanish Agency for Data Protection.

SIXTH: According to the report obtained from the AXESOR tool, the entity WATIUM S.L. is a company

established in 2012, with a business volume of \*\*\*AMOUNT.1 euros in 2022.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Obligation breached

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In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the complained party has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of the complained party, the investigative power conferred to control authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the "Facts" section are deemed to constitute an infringement, attributable to the complained party, for violation of Article 58.1 of the GDPR, which states that each control authority shall have, among its investigative powers:

"a) order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions."

III

### Classification and Qualification of the Infringement

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the presented facts could constitute an infringement, attributable to the complained party.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "failure to provide access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the alleged infringement prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"ñ) Failure to provide access to the personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers."

IV

### Proposal for Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR. Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR

must be taken into consideration.

In light of the facts presented, without prejudice to the outcome of the instruction of the procedure, it is considered appropriate to impose a sanction on the complained party for the violation of Article 58.1 of the GDPR classified under Article 83.5.e) of the GDPR. The sanction that would correspond to be imposed is an administrative fine of €160,000.00.

The following circumstances have been considered for the graduation of the sanction:

- The classification of the infringement made by the legislator itself in Article 83 of the GDPR, placing it within the set of more serious infringements in paragraphs 5 and 6 of this article, which have a higher sanctioning range.
- The nature of the infringement according to Article 83.2.a), due to the protected interests and its place in the framework of personal data protection. By failing to provide a response to the information request made, the investigative powers granted to control authorities by the GDPR are disobeyed, obstructing the control function entrusted to them by the GDPR, and thus hindering the supervision over the effective application of the regulation and the fulfillment of the objectives pursued.
- The turnover of the responsible company, in order for the fine to be effective, dissuasive, and proportionate, in accordance with Article 83.1 of the GDPR.

Therefore, in light of the above,

By the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against WATIUM S.L., with NIF B86459260, for the infringement of Article 58.1 of the GDPR, classified under Article 83.5.e) of the aforementioned GDPR.

SECOND: TO ORDER WATIUM S.L. to, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, provide, within ten working days, the information required in the requests made in the framework of the proceedings with file number EXP202309276 and referred to in the description of the facts of this initiation agreement.

THIRD: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the information requests issued by the General Subdirectorate of Data Inspection in the framework of the proceedings with file number EXP202309276 and the accreditation of having been notified.

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FIFTH: That for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be, for the alleged infringement of Article 58.1 of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 160,000.00 euros, without prejudice to what results from the instruction.

SIXTH: NOTIFY this agreement to WATIUM S.L., with NIF B86459260, granting it a hearing period of ten working days to submit any allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 128,000.00 euros, resolving the procedure with the imposition

of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 128,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 96,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (128,000.00 euros or 96,000.00 euros), it must do so by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the bank CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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SECOND: On May 16, 2024, the respondent has proceeded to pay the sanction in the amount of 96,000 euros making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

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Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202405119, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to WATIUM S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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